

WILLOWTREE PLANNING



8 February 2024

REF: WTJ23 -514
Contact: Anthony Brogan

NSW Department of Planning, Housing and Infrastructure
Industry Assessments
Locked Bag 5022
Parramatta NSW 2124

Attention: Chris Ritchie

**RE: REQUEST FOR INDUSTRY-SPECIFIC SEARS
PROPOSED DATA CENTRE DEVELOPMENT
1 & 2 APOLLO PLACE, LANE COVE WEST LOT 1/2/CP SP 80721, LOT 11 DP 558654, AND LOT 1
DP 1271404**

Dear Chris,

We write on behalf of EMKC Cubed Management Pty Ltd (the Proponent) to the NSW Department of Planning, Housing and Infrastructure (DPHI) in support of a request for industry-specific Secretary's Environmental Assessment Requirements (SEARs), under the Rapid Assessment Framework (RAF). The intent of the letter is to demonstrate that the proposal is eligible for industry-specific SEARs.

The proposal involves the construction and operation of a new data centre development at 1 and 1A Apollo Place and 1 Sirius Road (*previously 2 Apollo Place*), Lane Cove West more formally described as Lot 1/2/CP SP 80721, Lot 11 DP 558654, and Lot 1 DP 1271404 (subject site).

The subject site is located within Lane Cove Council (Council) Local Government Area (LGA) and is zoned E4 General Industrial, pursuant to the *Lane Cove Local Environmental Plan 2009* (LCLEP2009). A data centre falls within the definition of 'light industry' which is permissible with consent in the E4 General Industrial zone under LCLEP2009. A data centre is also permissible with consent in the E4 zone under the *State Environmental Planning Policy (Transport and Infrastructure) 2021* (Transport and Infrastructure SEPP).

The proposal seeks consent for a 45-megawatt data centre and satisfies the definition of State Significant Development (SSD) pursuant to Chapter 2 and Schedule 1, Clause 25 of *State Environmental Planning Policy (Planning Systems) 2021* (Planning Systems SEPP), being:

- development for the purpose of data centres that has a total power consumption of more than the relevant amount of 15 megawatts.

The Concept Plan for the proposed scheme prepared by Greenbox Architecture are provided at **Appendix 1**.

This letter provides an overview of the proposal and the relevant planning framework that applies, to enable the issuance of industry-specific SEARs, which will then guide the preparation of a formal Environmental Impact Statement (EIS) for development of the subject site.

The proposal is considered to meet the criteria for industry-specific SEARs, based on the following:



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- It does not constitute Designated Development;
- It is wholly permissible within the E4 General Industrial zone; and
- It does not involve a concept development application (DA).

The following sections provide an overview of proposal to inform the NSW DPE's decision making for the issuance of industry-specific SEARs.

1.0 SITE DESCRIPTION

The subject site is identified as 1 and 1A Apollo Place and 1 Sirius Road, Lane Cove West, containing the following land holdings:

TABLE 1. SITE IDENTIFICATION		
Site Address	Legal Description(s)	Land Area (approx.)
1 Apollo Place, Lane Cove West	SP 80721	Total = 44,762m ²
1A Apollo Place, Lane Cove West	Lot 11 DP558654	
South-eastern Portion of 1 Sirius Road, Lane Cove West (<i>previously 2 Apollo Place</i>)	South-eastern Portion of Lot 1 DP 1271404	

The subject site is identified in **Figure 1** and **Figure 2** below.

The subject site currently comprises a four storey (B, G+2) building (*2 Apollo Place*), which we understand is used as offices and a one storey building (*1 Apollo Place*) which is used as a commercial kitchen for food preparation and distribution. The subject site has four existing vehicle driveway crossovers to Apollo Place. The neighbouring lot to the south is currently an office building. The neighbouring lots to the east are a plastic tool manufacturer and orthopaedics manufacturer.

The lot at 1 Apollo Place, Lane Cove West, was approved for strata subdivision into 2 lots on 24 April 2007. The lot at 1A Apollo Place, Lane Cove West is located within the southern portion of the subject site. This lot is not an easement, however, does contain an electricity substation.

The subject site is zoned E4 General Industrial pursuant to the LCLEP2009 (refer to **Figure 10**), for which the objectives are:

- *To provide a range of industrial, warehouse, logistics and related land uses.*
- *To ensure the efficient and viable use of land for industrial uses.*
- *To minimise any adverse effect of industry on other land uses.*
- *To encourage employment opportunities.*
- *To enable limited non-industrial land uses that provide facilities and services to meet the needs of businesses and workers.*
- *To provide support for innovative technologies and creative industries.*
- *To ensure landscaping is a significant element in development viewed from the public domain and neighbouring properties.*
- *To recognise the close proximity of this zone to adjoining residential areas and to mitigate potential conflict between industrial and residential uses.*



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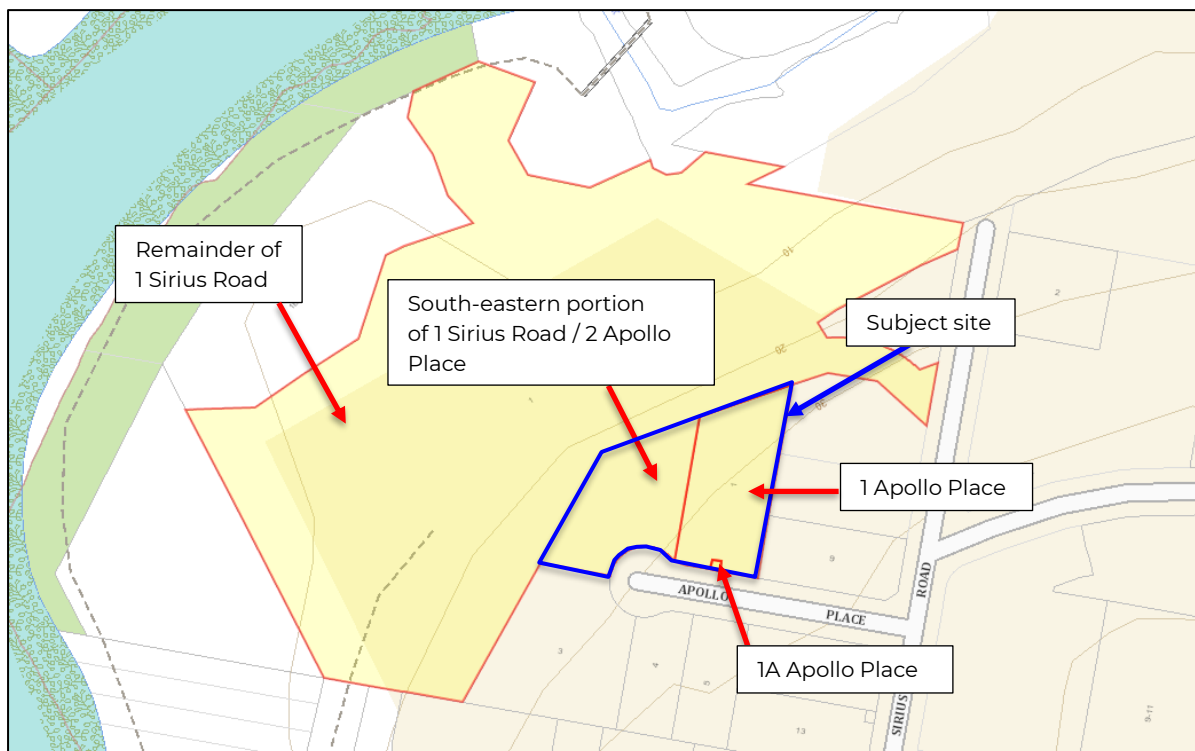


Figure 1. Cadastral Map (Source: SIX Maps, 2023)



Figure 2. Aerial Site Map (Nearmap, 2023)

The subject site is located approximately 9.1km northwest of the Sydney CBD and 12.4km east of Parramatta. The subject site is approximately 500m north of the Lane Cove Business Park and approximately 2.5km from the Lane Cove town centre. The Lane Cove River and Stringybark Creek are located approximately 200 - 250m north and west of the subject site.



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The Lane Cove Tunnel which forms part of the Hills Motorway (M2) is located 500m north of the subject site. A motorway stack known as the Western Stack is located within the north-western lot adjacent to the subject site (3 Sirius Road).

The subject site is strategically positioned within the Lane Cove West Business Park, which is designated for such industrial-related uses, the proposed development represents a logical outcome that would provide employment-generating opportunities close to where people live and nearby to available transport infrastructure routes.

Refer to **Figure 3** below.

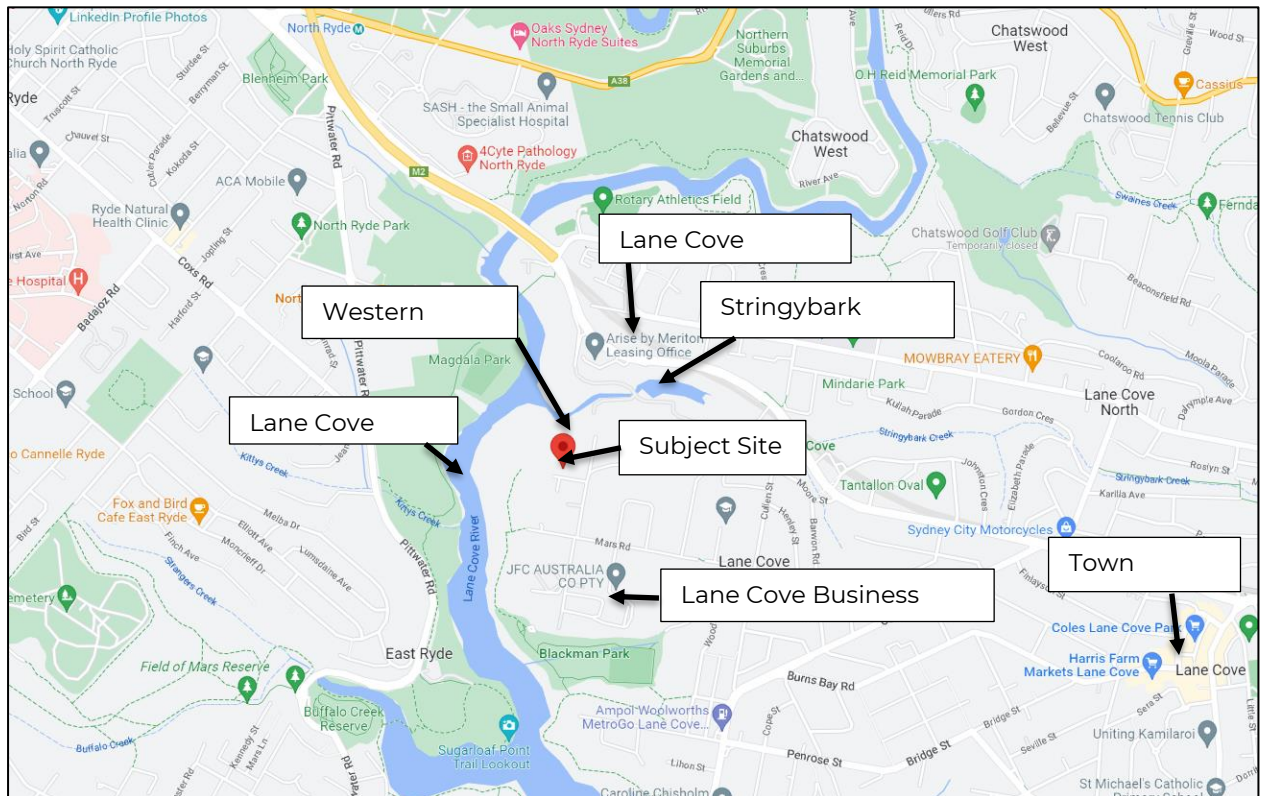


Figure 3. Site Context Map (Source: Google Maps, 2023)

2.0 DEVELOPMENT HISTORY

TABLE 2 outlined below provides a summary of the DAs, pertaining specifically to the subject site and of relevance to this proposal.

TABLE 2. EXISTING CONSENTS		
DA Reference	Summary	Approval Date
130/2007	s96 Modification - Clause 33 re ventilation etc - CORRECTED PLANS	26/02/2008
130/2007	s96 Modification of consent - Amend Condition No. 20	06/11/2007
130/2007	Use & fitout as commercial kosher kitchen	23/07/2007
48/2007	Strata subdivision into 2 lots	24/04/2007

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The remainder of 1 Sirius Road, Lane Cove West, (as shown in **Figure 1**) is subject to the recently approved Lane Cove West Data Centre, approved as State Significant Development (SSD-9741), granted under delegation by the Minister of Planning on 15 November 2019. SSD-9741 was approved for construction and 24-hour operation of a Data Centre, with associated office, supporting infrastructure and services, car parking and landscaping. The approved built form is 30.2m in height Floor Space Ratio of 0.93:1.

The SSD-9741 approved site layout is provided at **Figure 4**.

Two modifications to SSD-9741 have been approved and a third is currently undergoing assessment.

- Mod-1 comprised amendments to the size and quantity of back-up generators and an increase in the volume of diesel fuel stored at the site.
- Mod-2 comprised the refurbishment and use of 2 Apollo Place as ancillary office space to the approved data centre, and internal/external alterations to the approved data centre. The approved plans are provided at **Figure 5** below.
- Mod-3 is currently under determination and is anticipated to be approved imminently. Mod-3 involves a number of amendments to the design of the data centre, including two additional storeys on the building's southern and western plant gantries.

The approved site layout as per SSD-9741 is shown at **Figure 4** below.

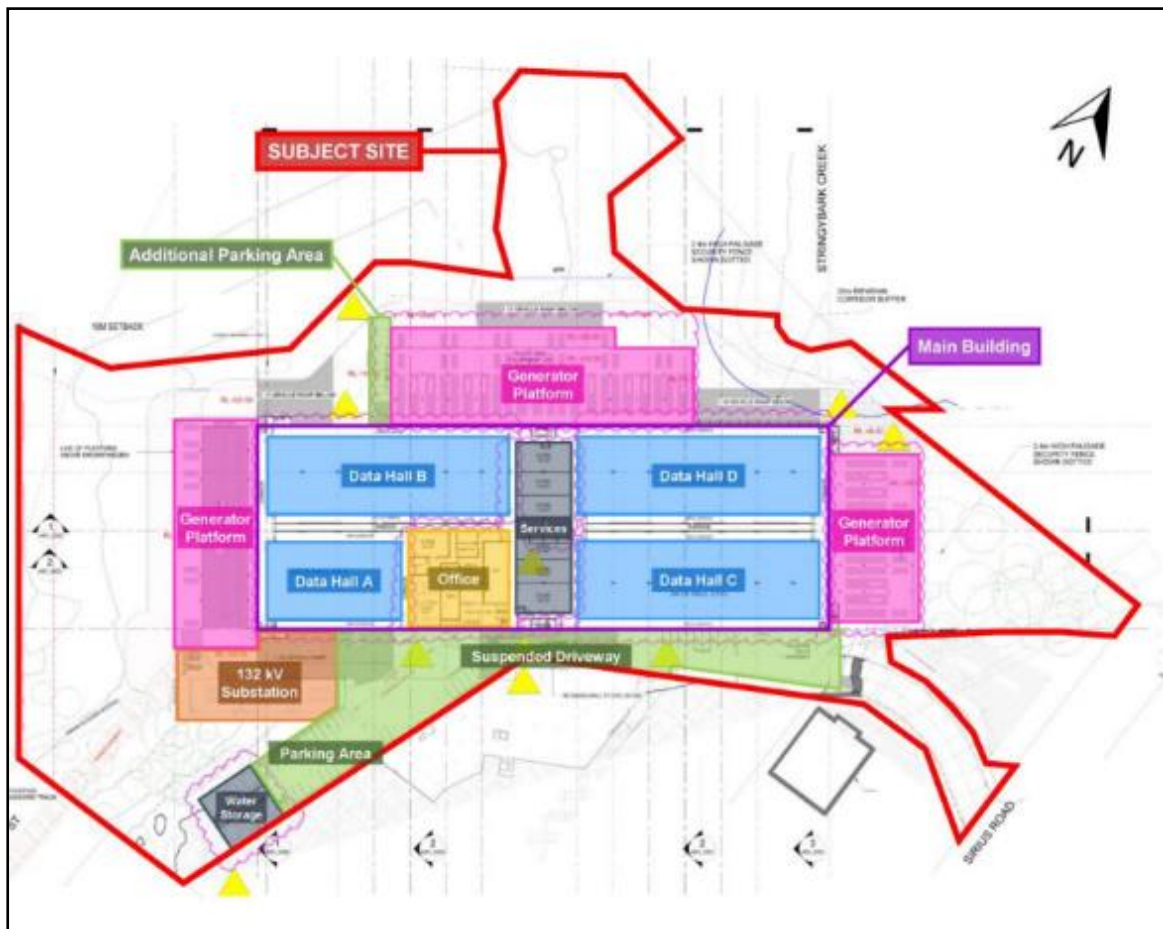


Figure 4: SSD-9741 Approved Site Layout

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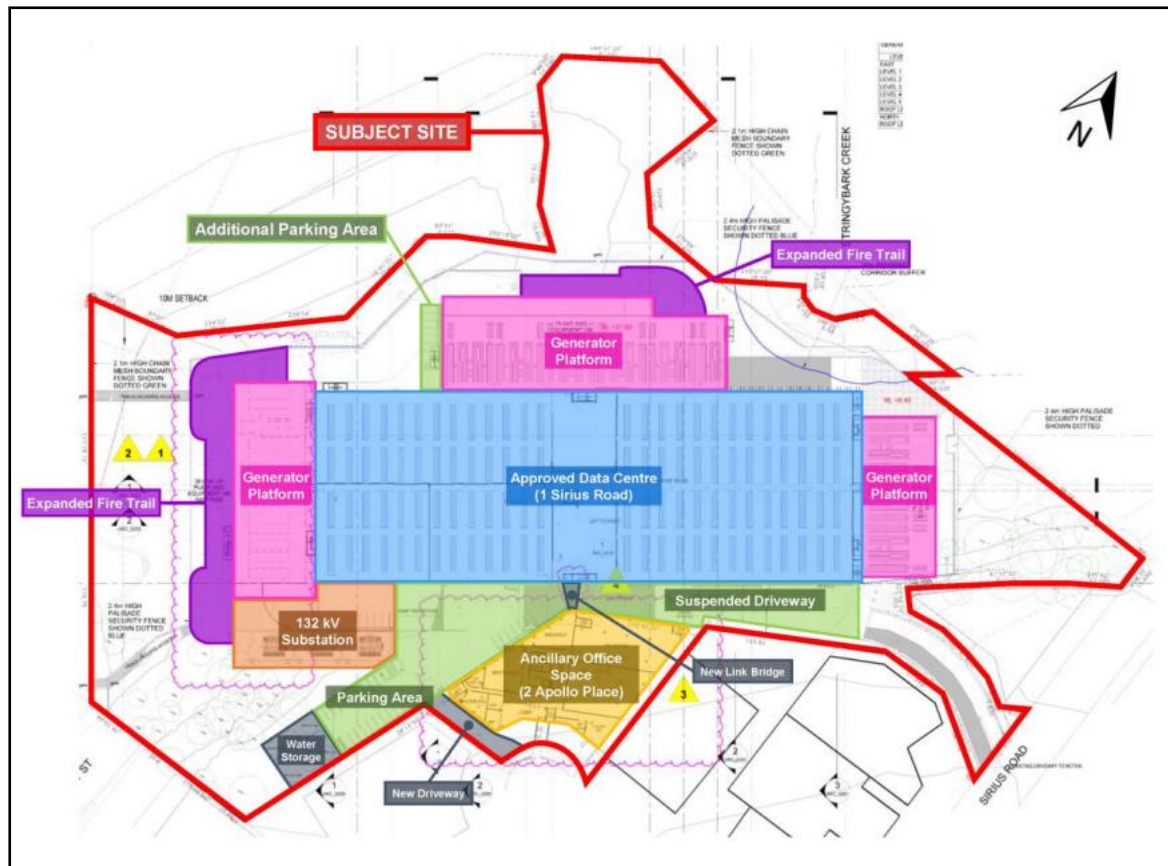


Figure 5: SSD-9741 Mod-2 Approved Site Layout

As identified above, the western portion of the subject site, 2 Apollo Place, forms part of the 1 Sirius Road data centre development, providing ancillary office space to the development.

As such, the proposal on the subject site will be considered within the context of 1 Sirius Road. In particular in regard to FSR, parking, and landscaping, which are further detailed in the ensuing sections.

3.0 PROPONENT DETAILS

The Proponent for this proposal is EMKC³, refer to **TABLE 3**.

TABLE 3: PROPONENT CONTACT DETAILS	
Company Details	EMKC Cubed Management Pty Ltd
Contact Name	Pawan Lala
Position	Assistant Development Manager
Contact Number	+61 488 587 333
Email Address	pawan.lala@emkc3.com

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4.0 PROJECT DETAILS

The subject proposal will seek development consent for the construction and operation of a 45-megawatt (45MW) data centre development, comprising a single building arranged over 4-storeys. The proposal would promote the enhanced development of Lane Cove, ultimately providing for employment opportunities and advanced data storage facility to support the growth and development of IT infrastructure across Sydney and NSW.

The Concept Plans, prepared by Greenbox Architecture, are included within **Appendix 1**.

The particulars of this proposal are summarised below:

- Demolition of existing buildings
- Site preparation works, including tree clearing (no. of trees to be confirmed)
- Earthworks and additional site retaining;
- Infrastructure comprising civil works and utilities servicing
- Construction a 4 storey data centre with a total of 45-megawatts
- Ancillary office and amenities
- On-site car parking for 65 spaces at level 1 and level 1 mezzanine
- Complementary landscaping and offset planting (no. of planting to be confirmed)

The proposed development includes those works as identified in **TABLE 4** below.

TABLE 4: DEVELOPMENT PARTICULARS	
Component	Proposed
Site Area	44,762m ²
Primary Land Use	Data Centre (High Technology Industry)
FSR	1.01:1
Data Capacity	45 mega-watts
Number of Storeys	Four (4)
Roads / Driveways	Two (2) existing driveways from Apollo Place
Infrastructure and Services	- New drainage and stormwater infrastructure. - Power and water connections will utilise existing infrastructure.
Machinery and Plant	- 16 rooftop cooling towers - 29 Generators - 29 Transformers
Diesel Storage	- 1,992,000L or 1694T of Diesel (existing and proposed facility)
Generator Testing	- 50hrs (existing and proposed facility, 150 generators, 20 min each)
Estimated Cost of Works	\$200m
Construction Jobs	400
Operational Jobs	30

Figure 6, Figure 7, Figure 8, Figure 9 below include an excerpt of the Concept Plans prepared by Greenbox Architecture (refer to **Appendix 1**).



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It is noted that Condition B14 of SSD-9741 sets operational noise limits for the adjacent data centre. This condition is sought to be modified to account for the anticipated additional noise impacts from the proposal.

The consolidated noise model will incorporate multiple reflections from all hard surfaces including the surrounding buildings (eg the SYD2 and Apollo buildings, etc), which will account for reflected noise from the SYD roof top plant of the adjacent Apollo building facades. Building facades will be set with low reflection losses / absorption coefficients to adequately address potential acoustic reflections, consistent with preparing a conservative noise model.





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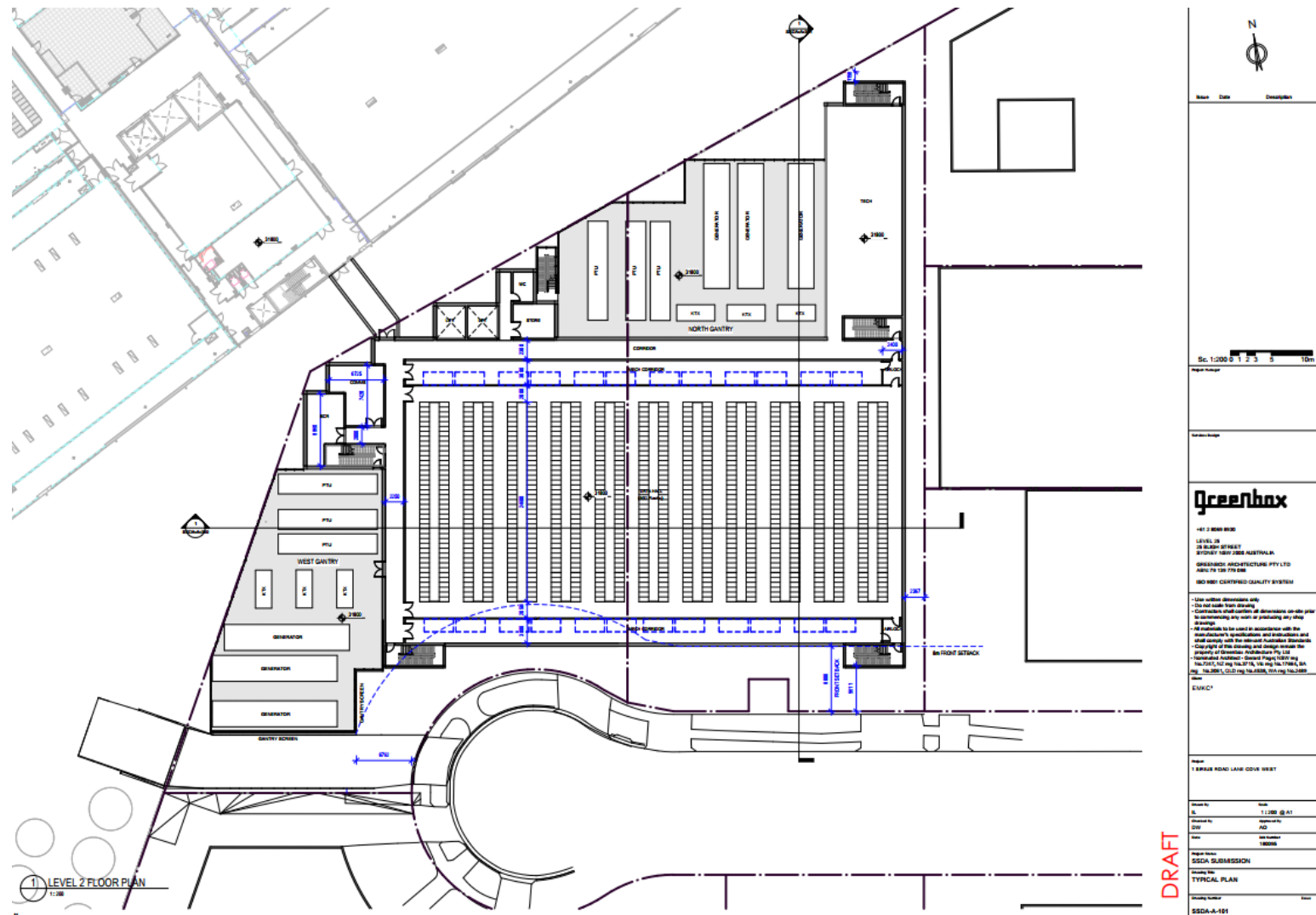


Figure 7: Typical Plan (Source: Greenbox Architecture, 2023)

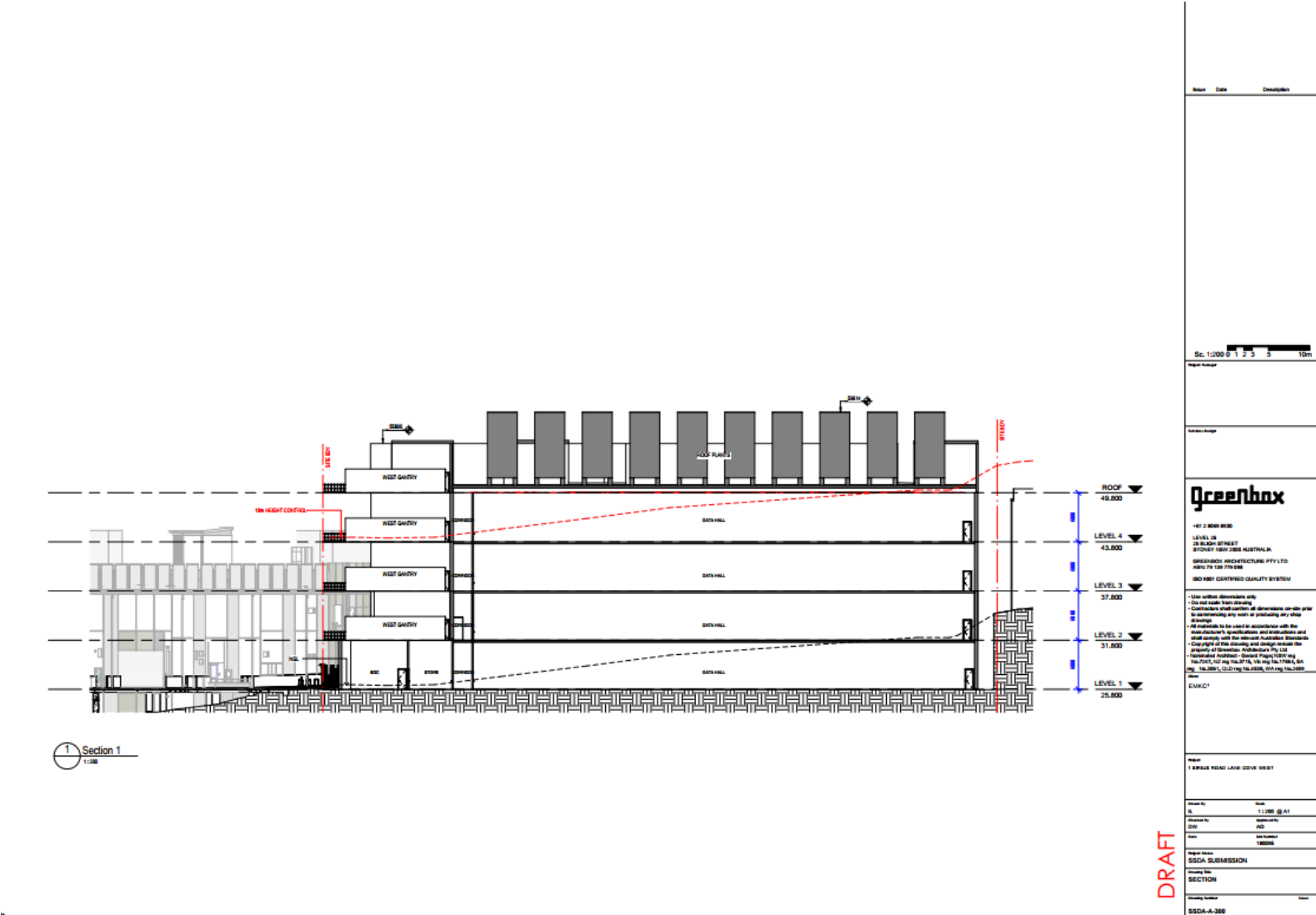


Figure 8: Section 1 (Source: Greenbox Architecture, 2023)

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Figure 9: Elevation from Apollo / 1 Sirius Road (Source: Greenbox Architecture, 2023)



5.0 LEGISLATIVE AND POLICY FRAMEWORK

This section sets out the statutory planning framework and controls relevant to the proposal.

The following statutes, strategic plans and policies have been considered as part of the development planning phase:

Commonwealth Planning:

- *Commonwealth Environment Protection and Biodiversity Conservation Act 1999*

State Planning:

- *Environmental Planning and Assessment Act 1979*
- *Environmental Planning and Assessment Regulation 2021*
- *Water Management Act 2000*
- *Biodiversity Conservation Act 2016*
- *Protection of the Environment Operations Act 1997*
- *State Environmental Planning Policy (Resilience and Hazards) 2021*
- *State Environmental Planning Policy (Industry and Employment) 2021*
- *State Environmental Planning Policy (Transport and Infrastructure) 2021*
- *State Environmental Planning Policy (Planning Systems) 2021*
- *State Environmental Planning Policy (Biodiversity and Conservation) 2021*

Local Planning Context

- *Lane Cove Local Environmental Plan 2009*
- *Lane Cove Section 7.11 Contributions Plan*
- *Lane Cove Development Control Plan 2009*

Strategic Context

- *Greater Sydney Regional Plan*
- *North District Plan*
- *Lane Cove Local Strategic Planning Strategy*

5.1 Environment Protection and Biodiversity Conservation Act 1999

Under the *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act), any action (which includes a development, project or activity) that is considered likely to have a significant impact on Matters of National Environmental Significance (MNES) (including nationally threatened ecological communities and species and listed migratory species) must be referred to the Commonwealth Minister for the Environment. The purpose of the referral is to allow a decision to be made about whether an action requires approval on a Commonwealth level. If an action is considered likely to have significant impact on MNES, it is declared a “controlled action” and formal Commonwealth approval is required.

The proposal does not warrant significant impacts on MNES, therefore no further consideration of the EPBC Act is required.



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5.2 Environmental Planning and Assessment Act 1979

The *Environmental Planning and Assessment Act 1979* (EP&A Act) is the overarching governing statute for all development in NSW and pursuant to Part 4, the proposal is considered SSD under the Planning Systems SEPP.

5.2.1 Section 4.15(1) of the EP&A Act 1979

Section 4.15(1) of the EP&A Act specifies the matters, that a consent authority must consider when determining a DA. The forthcoming EIS will consider and address all matters outlined in Section 4.15 of the EP&A Act.

4.3 Environmental Planning and Assessment Regulation 2021

4.3.1 Section 7 – Designated Development

Section 7(1) of the EP&A Regulation states that:

“Development described in Schedule 3, Part 2 is declared to be designated development unless it is not designated development under Schedule 3, Part 3.”

The proposal, being a data centre development, does not trigger Designated Development pursuant to Schedule 3 of the EP&A Regulation.

4.4 Biodiversity Conservation Act 2016

The *Biodiversity Conservation Act 2016* (BC Act) and *Biodiversity Conservation Regulation 2017* (BC Regulation) seek to maintain a healthy, productive and resilient environment for the greatest well-being of the community, now and into the future, consistent with the principles of ecologically sustainable development.

The subject site is not identified as containing areas mapped on the Biodiversity Values Map (BV Map).

Pursuant to Section 7.9 of the BC Act, an SSD “is to be accompanied by a biodiversity development assessment report unless the Planning Agency Head and the Environment Agency Head determine that the proposed development is not likely to have any significant impact on biodiversity values”. A Biodiversity Development Assessment Report (BDAR) waiver will be prepared as part of the forthcoming EIS.

4.5 Water Management Act 2000

The Lane Cove River and Stringybark Creek are located approximately 200 - 250m north and west of the subject site, which is outside the thresholds of triggering the requirement for a controlled activity approval under the WM Act. Notwithstanding, should groundwater interference be identified as part of future investigations, further consideration of the WM Act will be required.

4.6 Protection of the Environment Operations Act 1997

Schedule 1 of the *Protection of the Environment Operations Act 1997* (POEO Act) contains a core list of activities that require a licence before they may be undertaken or carried out. The definition of an ‘activity’ for the purposes of the POEO Act is:

“an industrial, agricultural or commercial activity or an activity of any other nature whatever (including the keeping of a substance or an animal).”

The proposed development would have a diesel storage capacity of 1,992,000L. It is noted that this proposed diesel storage capacity does not constitute a scheduled activity under Schedule 1, Section 9 of the POEO Act.



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Similarly, the generating testing hours would not constitute a scheduled activity under Schedule 1, Section 17 of the POEO Act. This is pursuant to Section 17, Clause (1A) as the total testing time of the generators has been estimated to be 52 hours per year which is below the 200 hour limit for stand-by generating plant.

4.7 State Environmental Planning Policy (Planning Systems) 2021

Schedule 1 of the Planning Systems SEPP includes provisions for developments to be undertaken as SSD. Section 25 is relevant to the proposed development:

- (1) *Development for the purpose of data centres that has a total power consumption of more than the relevant amount.*
- (2) **Relevant amount** means –
 - (a) *for development in relation to which the relevant environmental assessment requirements are notified under the Act on or before 31 May 2023 – 10 megawatts, or*
 - (b) *for any other development – 15 megawatts.*

As shown on the Concept Plans in **Appendix 1**, the proposal is for a 45-megawatt data centre, thus the SSD provisions apply.

4.8 State Environmental Planning Policy (Transport and Infrastructure) 2021

Transport and Infrastructure SEPP aims to facilitate the effective delivery of infrastructure across NSW.

A data centre falls which is permissible with consent in the E4 General Industrial zone, being a prescribed zone pursuant to Chapter 2, Part 2.3, Division 3 of the Transport and Infrastructure SEPP,

4.8.1 Traffic generating development

Schedule 3 of Transport and Infrastructure SEPP, lists the types of development that are defined as Traffic Generating Development.

The applicable trigger for traffic generating development is 20,000m² in site area or (if the site area is less than the gross floor area) gross floor area. The total area of the subject site is 44,762 and would be referred under these provisions.

4.9 State Environmental Planning Policy (Resilience and Hazards) 2021

The *State Environmental Planning Policy (Resilience and Hazards) 2021* (Resilience and Hazards SEPP) contains planning provisions relating to:

- land use planning within the coastal zone, in a manner consistent with the objects of the *Coastal Management Act 2016*.
- management of hazardous and offensive development.
- remediation of contaminated land and to minimise the risk of harm.

In relation to the subject site, the following matters are highlighted.

4.9.1 Hazardous and offensive development



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The proposed data centre will require the storage and/or handling of some potentially dangerous goods or materials, i.e., lithium batteries and diesel fuel storage.

As such, a preliminary risk screening analysis will be undertaken in accordance with the Industry-specific SEARs to determine whether a Preliminary Hazard Analysis is required.

4.9.2 Remediation of land

Under Chapter 4 of the Resilience and Hazards SEPP, where a DA is made, the consent authority must not grant consent unless:

- (a) it has considered whether the land is contaminated, and*
- (b) if the land is contaminated, it is satisfied that the land is suitable in its contaminated state (or will be suitable, after remediation) for the purpose for which the development is proposed to be carried out, and*
- (c) if the land requires remediation to be made suitable for the purpose for which the development is proposed to be carried out, it is satisfied that the land will be remediated before the land is used for that purpose.*

An environmental site assessment will form part of the forthcoming EIS. It is noted that the site assessment will be thoroughly reviewed and a Remedial Action Plan (RAP) may be required depending on the outcomes of the site assessment outcomes.

4.10 State Environmental Planning Policy (Sustainable Buildings) 2022

Chapter 3 of the *State Environmental Planning Policy (Sustainable Buildings) 2022* (SB SEPP) requires non-residential development with a CIV of \$5 million or more to demonstrate how it has reduced carbon emissions, waste and generates and stores renewable energy.

An Ecologically Sustainable Development Statement will form part of the forthcoming EIS which will address this requirement.

4.10.1 Zoning

The LCLEP2009 is the primary Environmental Planning Instrument that applies to the subject site.

The subject site is located within the E4 General Industrial zone under the LCLEP2009 as shown in **Figure 10** below.



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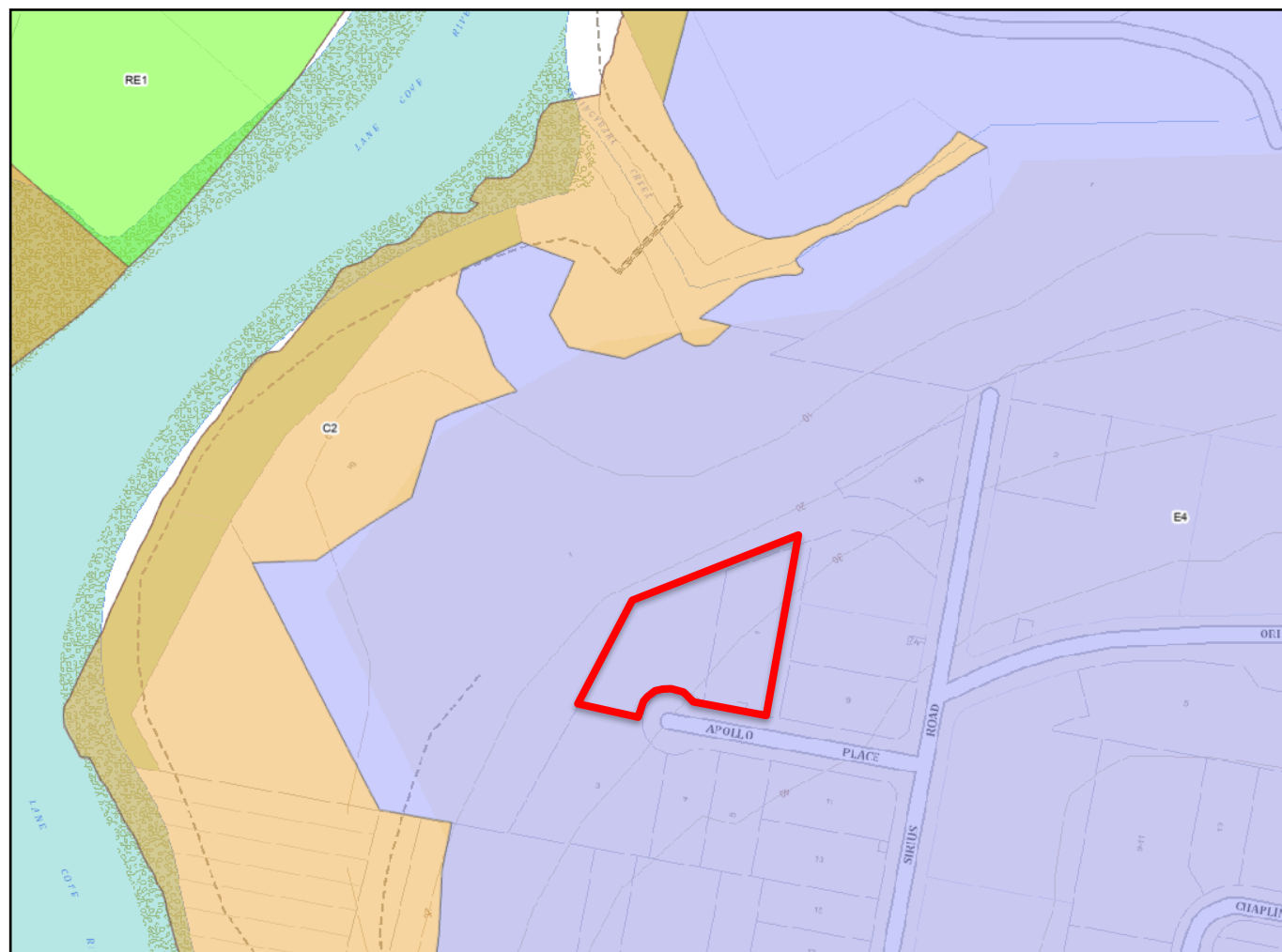


Figure 10: LCLEP2009 Land Use Zones Map (Source: NSW Planning Legislation, 2023)

4.10.2 Land use

Under the Standard Instrument Local Environmental Plan (LEP), the proposal would be considered a 'Data centre', which is a type of 'high technology industry', defined as follows:

TABLE 5. LAND USE DEFINITION FOR THE PROPOSAL		
Land use	Description	Sub definition
Industry	industry means any of the following— (a) general industry, (b) heavy industry, (c) light industry , but does not include— (d) rural industry, or (e) extractive industry, or mining.	
Light Industry	light industry means a building or place used to carry out an industrial activity that does not interfere with the amenity of	



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	<i>the neighbourhood by reason of noise, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil, or otherwise, and includes any of the following—</i> (a) high technology industry, (b) <i>home industry,</i> (c) <i>artisan food and drink industry, creative industry.</i>	
High technology industry	high technology industry means a building or place predominantly used to carry out an industrial activity that involves any of the following— (a) <i>electronic or micro-electronic systems, goods or components,</i> (b) <i>information technology (such as computer software or hardware),</i> (c) <i>instrumentation or instruments of a scientific, industrial, technological, medical or similar nature,</i> (d) <i>biological, pharmaceutical, medical or paramedical systems, goods or components,</i> (e) <i>film, television or multi-media technologies, including any post production systems, goods or components,</i> (f) <i>telecommunications systems, goods or components,</i> (g) <i>sustainable energy technologies,</i> (h) <i>any other goods, systems or components intended for use in a science or technology related field,</i> <i>and includes a data centre, but does not include a building or place used to carry out an industrial activity that presents a hazard or potential hazard to the neighbourhood or that, because of the scale and nature of the processes involved, interferes with the amenity of the neighbourhood.</i>	data centre means a building or place the principal purpose of which is to collect, distribute, process or store electronic data using information technology.

4.10.3 Permissibility

Within the E4 General Industrial zone the following are permissible without consent:

- *Nil.*

Within the E4 General Industrial zone the following are permissible with consent:

- *Car parks; Centre-based child care facilities; Community facilities; Depots; Food and drink premises; Garden centres; Hardware and building supplies; Industrial training facilities; **Light industries**; Medical centres; Neighbourhood shops; Oyster aquaculture; Places of public worship; Recreation areas; Recreation facilities (indoor); Respite day care centres; Roads; Self-storage units; Sex services premises;*



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Signage; Tank-based aquaculture; Vehicle body repair workshops; Vehicle repair stations; Vehicle sales or hire premises; Warehouse or distribution centres

Within the E4 General Industrial zone the following are prohibited:

- Pond-based aquaculture; Any other development not specified in item 2 or 3

The proposal, being for a data centre development, is a form of light industry, which, is permitted with consent in the E4 General Industrial zone. The proposed development is in accordance with the objectives of the E4 General Industrial zone as the proposal is for a light industry which provides opportunities for employment.

4.10.4 LCLEP2009 Development Standards

The principal development standards for the proposed development are contained within the LCLEP2009.

The following development standards are considered relevant to pre-lodgement discussions with DPHI and the proposed development:

outlines the developments consistency and compliance with the relevant development standards and controls under LCLEP2009.

TABLE 6. DEVELOPMENT STANDARDS

Clause	Comment
Clause 4.1 – Minimum Lot Size	The subject site is not mapped as having an applicable minimum lot size.
Clause 4.3 – Height of Buildings	The subject site is mapped as having a maximum building height of 18m. Pursuant to LCLEP2009: <i>building height</i> (or <i>height of building</i>) means— (a) <i>in relation to the height of a building in metres—the vertical distance from ground level (existing) to the highest point of the building, or</i> (b) <i>in relation to the RL of a building—the vertical distance from the Australian Height Datum to the highest point of the building,</i> <i>including plant and lift overruns, but excluding communication devices, antennae, satellite dishes, masts, flagpoles, chimneys, flues and the like.</i> It is relevant to note that there are significant changes in levels across the site, with the natural ground level (NGL) changing of approximately 11.5 in a downward slope from east to west across the site. As such, this results in differing in an overall height from ground level for proposed development to the highest point across the site, notwithstanding the number of storeys. Measured at various points through section, the height exceedances would be as follows: - Top of plant: 5.8 metres to 15.5 metres - Top of roof: 2.3 metres to 12 metres The Lane Cove West Data Centre, located to the north and west of the subject site exceeds the maximum building height control. The Lane Cove West Data Centre is approved to have a building height of 30.2m. Mod-3 however seeks to increase this



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	to 49.9m (<i>an overall 31.9 m exceedance, with regard to compliance concerning the maximum LEP building height of 18 m</i>). We understand that Mod-3 is to be approved imminently. It is considered that the proposed building height will represent and deliver a consistent building line alongside the adjacent data centre. Notwithstanding, a Clause 4.6 variation will be submitted to Lane Cove Council with any future DA to justify the exceedance to the height threshold, and will demonstrate that the development: ▪ allows for reasonable solar access to existing buildings and public areas, ▪ ensures that privacy and visual impacts of development on neighbouring properties, particularly where zones meet, are reasonable, ▪ relates to the development to topography and existing streetscape.
Clause 4.4 – Floor Space Ratio	The subject site is mapped as having an applicable maximum floor space ratio (FSR) of 1:1. The proposed new data centre would result in a total GFA of 45,281m² across the greater site which results in a FSR of 1.01:1. A Clause 4.6 variation will be submitted with the future DA for the FSR variation. It is considered a variation of this extent is minor and supportable on merit.
Clause 4.6 – Exceptions to development standards	As set out above, this clause permits variations to development standards. The objectives of this Clause are set out below: <i>(a) to provide an appropriate degree of flexibility in applying certain development standards to particular development,</i> <i>(b) to achieve better outcomes for and from development by allowing flexibility in particular circumstances.</i> A Clause 4.6 variation request will be submitted for the proposed exceedance in building height and FSR under the LCLEP2009.
Clause 5.6 – Architectural Roof Features	Exceedances to the maximum building height are allowed for architectural roof features. This does not include plant or equipment.
Clause 5.10 – Heritage	The subject site is not mapped as a heritage item. Land to the north of the subject site is mapped as comprising a General Heritage Item (I214) and Archaeological Heritage Item (A6), refer to Figure 11. Development of the subject site will consider the heritage significance of these items and the potential of any proposed development to impact their significance as part of the Environmental Heritage Assessment.



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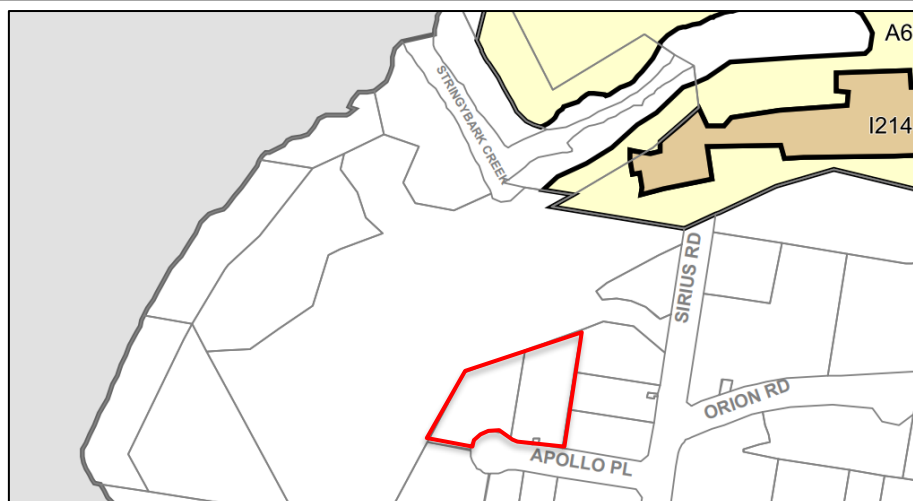


Figure 11: Heritage Mapping (Source: NSW Legislation, 2023)

Clause 5.23 – Public bushland	Land adjacent to Lane Cove River is considered public bushland, pursuant to clause 5.23. The proposed development will consider the potential for visual amenity impacts to this public bushland as part of the Visual Impact Assessment which will form part of the EIS.
Clause 6.1 – Acid sulfate soils	The subject site is not mapped as having acid sulphate soils. No further consideration is required.

4.10.5 Lane Cove Development Control Plan 2009

The LCDCP2009 provides detailed planning and design guidelines to support the planning controls of the LCLEP2009.

The below points summarise the key LCDCP2009 controls relevant to the proposed development:

- A minimum building setback from Apollo Place of 8m is applicable to the subject site. The proposed setback intrusion at the turning head of Apollo Place is minor and considered supportable on merit.
- A minimum 3m of the front building setback should be landscaped. There is no applicable minimum building setback to the side and rear of the subject site. Compliance with this control is achieved.
- All rooftop plant and equipment should be integrated into the building design.
- The minimum landscaped area of 20% is required and the minimum landscape planting on structures 10%. Landscaping design is yet to be finalised, however the proposal will aim to achieve compliance with this control.
- Car parking requirements applicable to the proposal are as follows:
 - LCDCP2009 on-site car parking rates are:
 - 1 car park per 77m² of light industrial area (data centre); and
 - 1 car park per 60m² of ancillary office area; and
 - 1 disabled space per 50 car spaces (minimum 1 disabled space)
 - The proposed car parking provision is at a rate similar to that approved under SSD-9741 and is considered to be acceptable. Notwithstanding, a Traffic and Transport Assessment will accompany the DA and will be fully evidence and justify the proposed parking rates.

The Applicant would welcome discussions with DPE regarding the proposed:

- height of the data centre and the exceedance to the 18m maximum height limit.
- FSR and the exceedance to the 1:1 maximum FSR.
- Building set-backs and landscaping along the primary frontage, facing Apollo Place.



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- Car parking rates proposed in the context of those approved for the Lane Cove West Data Centre under SSD-9741.

5.0 OTHER APPROVALS/COMMENTS

Confirmation on whether additional approvals are required under the WM Act and POEO Act will occur once the design is further progressed.

6.0 INDUSTRY-SPECIFIC SEARS

This section reviews the relevant industry-specific SEARs and includes commentary on how the Applicant intends to respond to each item, where applicable. Refer to **TABLE 7** for further details.

TABLE 7: INDUSTRY-SPECIFIC SEARS		
Issue and Assessment Requirements	Documentation	Applicant Comments
1. Statutory Context ▪ Address all relevant legislation, environmental planning instruments (EPIs) (including drafts), plans, policies and guidelines. ▪ Identify compliance with applicable development standards and provide a detailed justification for any non-compliances. ▪ If the development is only partly State significant development (SSD) under Chapter 2 of SEPP (Planning Systems) 2021, provide an explanation of how the remainder of the development is sufficiently related to the component that is SSD. ▪ Address the requirements of any approvals applying to the site, including any concept approval or recommendation from any Gateway determination.	Address in EIS.	Noted – the proposal will address the requirement of this item.
2. Capital Investment Value and Employment ▪ Provide a detailed calculation of the capital investment value (CIV) of the development prepared by a AIQS Certified Quantity Surveyor or RICS Chartered Quantity Surveyor in accordance with Planning Circular PS 21- 020: Calculation of Capital Investment Value. The calculation of the estimated CIV is to be accurate at the date of application and include details of all components and assumptions from which it is derived. ▪ Provide an estimate of the retained and new jobs that would be created during the construction and operational phases of the development, including details of the	Quantity Surveyor Report.	Noted – a Quantity Surveyor Report and estimate of the employment numbers will support the proposal.



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methodology to determine the figures provided.		
3. Design Quality - Demonstrate how the development will achieve: - design excellence in accordance with any applicable EPI provisions. - good design in accordance with the seven objectives for good design in <i>Better Placed</i>. - Where required by an EPI or concept approval, demonstrate how the development has been subject to a competitive design process or reviewed by the State Design Review Panel (SDRP). Recommendations are to be addressed prior to lodgement.	Address in EIS. If required: - Design Review Summary (where the project has been reviewed by the SDRP). - Design Excellence Strategy (where design excellence is required by an EPI). - Competition Report (where a competitive design process has been held).	Design quality will be addressed in the EIS, however it is noted that a Design Review Summary, Design Excellence Strategy and Competition Report are not required for a proposal of this nature.
4. Built Form and Urban Design - Explain and illustrate the proposed built form, including a detailed site and context analysis to justify the proposed site planning and design approach. - Demonstrate how the proposed built form (layout, height, bulk, scale, separation, setbacks, interface and articulation) addresses and responds to the context, site characteristics, streetscape and existing and future character of the locality. - Demonstrate how the building design will deliver a high-quality development, including consideration of façade design, articulation, materials, finishes, colours, any signage and integration of services. - Assess how the development complies with the relevant accessibility requirements.	Architectural drawings. Design Report. Survey Plan. BCA Compliance Report. Accessibility Report.	Noted – the proposal will address the requirements of this item through the listed reports.
5. Visual Impact - Provide a visual analysis of the development from key viewpoints, including photomontages or perspectives showing the proposed and likely future development. - Where the visual analysis has identified potential for significant visual impact, provide a visual impact assessment that addresses the impacts of the development on the existing catchment.	Visual Analysis. Visual Impact Assessment.	Noted – the proposal will be informed by photomontages and perspective drawings, where necessary, and include a Visual Impact Assessment, specifically focussing on impacts from areas designated as public reserve.
6. Traffic, Transport and Accessibility - Provide a transport and accessibility impact assessment, which includes: - details of all traffic types and volumes likely to be generated	Transport and Accessibility Impact Assessment. Construction Traffic Management Plan.	Noted – the proposal will address the requirements of this item through the listed reports.



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during construction and operation, including a description of key access and haul routes. - o an assessment of the predicted impacts of this traffic on road safety and the capacity of the road network, including consideration of cumulative traffic impacts at key intersections (using industry standard modelling). - o plans demonstrating how all vehicles likely to be generated during construction and operation and awaiting loading, unloading or servicing can be accommodated on the site to avoid queuing in the street network. - o details and plans of any proposed internal road network, loading dock provision and servicing, on-site parking provisions, and sufficient pedestrian and cyclist facilities, in accordance with the relevant Australian Standards. - o swept path analysis for the largest vehicle requiring access to the development. - o details of road upgrades, infrastructure works, or new roads or access points required for the development if necessary. ▪ Provide a Construction Traffic Management Plan detailing predicted construction vehicle movements, routes, access and parking arrangements, coordination with other construction occurring in the area, and how impacts on existing traffic, pedestrian and bicycle networks would be managed and mitigated.	Green Travel Plan or equivalent.	
7. Trees and Landscaping ▪ Provide a detailed site-wide landscape plan, that: - o identifies the number and location of trees to be removed and retained, and how opportunities to retain significant trees have been explored and/or informs the plan. - o details the proposed site planting, including location, number and species of plantings, heights of trees at maturity and proposed canopy coverage (as a percentage of the site area).	Landscape Plan.	Noted – the proposal will include a Landscape Plan.



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- o demonstrates how the proposed development would: – contribute to long term landscape setting in respect of the site and streetscape. – mitigate the urban heat island effect and ensure appropriate comfort levels on-site. – contribute to the objective of increased urban tree canopy cover. – maximise opportunities for green infrastructure, consistent with Greener Places and having regard to any bush fire risk.		
8. Ecologically Sustainable Development (ESD) Identify how ESD principles (as defined in section 3 of the EP&A Regulation) are incorporated in the design and ongoing operation of the development. Demonstrate how the development will meet or exceed the relevant industry recognised building sustainability and environmental performance standards. Demonstrate how the development minimises greenhouse gas emissions (reflecting the government's goal of net zero emissions by 2050) and consumption of energy, water (including water sensitive urban design) and material resources.	ESD Report.	Noted – the proposal will be supported by an ESD Report.
9. Biodiversity ▪ Assess any biodiversity impacts associated with the development in accordance with the <i>Biodiversity Conservation Act 2016</i> and the <i>Biodiversity Assessment Method 2020</i>, including the preparation of a Biodiversity Development Assessment Report (BDAR), unless a waiver is granted, or the site is on biodiversity certified land. ▪ If the development is on biodiversity certified land, provide information to identify the site (using associated mapping) and demonstrate the proposed development is consistent with the relevant biodiversity measure conferred by the biodiversity certification.	Biodiversity Development Assessment Report or BDAR Waiver.	Noted – the proposal will be supported by either BDAR waiver or a BDAR.
10. Back-up Power System ▪ Provide a detailed overview of any proposed back-up power system, including the scale and capacity of the system, and any associated testing procedures (frequency and duration).	Address in EIS.	Noted – the proposal will address the requirement of this item.



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Provide a detailed justification for the proposed back-up power system, including alternatives considered.		
11. Air Quality Provide an assessment of air quality impacts, prepared in accordance with the relevant NSW Environment Protection Authority (EPA) guidelines. The assessment must address construction works and include modelling of emissions and air pollutants from predicted operations (including testing of the back-up power system) and a peak emission and air pollutant scenario, and outline the proposed mitigation, management and monitoring measures that would be implemented.	Address in EIS. If required: Air Quality Impact Assessment.	Noted – the proposal involves a data centre and is not considered to exhibit any significant air emissions sources, nor is it located within close proximity to sensitive receivers. As such, the EIS will suitably address this requirement. If required, an Air Quality Impact Assessment will be undertaken.
12. Noise and Vibration Provide a noise and vibration assessment prepared in accordance with the relevant EPA guidelines. The assessment must detail construction and operational noise and vibration impacts on nearby sensitive receivers and structures and outline the proposed management and mitigation measures that would be implemented.	Noise and Vibration Impact Assessment.	Noted – the proposal will be supported by a Noise and Vibration Impact Assessment. It is noted that Condition B14 of SSD-9741 sets operational noise limits for the adjacent data centre. This condition will need to be modified to account for the additional noise impacts from the proposal.
13. Ground and Water Conditions - Assess potential impacts on soil resources and related infrastructure and riparian lands on and near the site, including soil erosion, salinity and acid sulfate soils. - Provide a Surface and Groundwater Impact Assessment that assesses potential impacts on: - surface water resources (quality and quantity) including related infrastructure, hydrology, dependent ecosystems, drainage lines, downstream assets and watercourses. - groundwater resources in accordance with the Groundwater Guidelines.	Geotechnical Assessment. Surface and Groundwater Impact Assessment. Salinity Management Plan and/or Acid Sulfate Soils Management Plan.	Noted – the proposal will address the requirements of this item through the listed reports.
14. Water Management - Provide an Integrated Water Management Plan for the development that: - is prepared in consultation with the local council and any other relevant drainage or water authority. - outlines the water-related servicing infrastructure required by the development (informed by the anticipated annual and ultimate	Integrated Water Management Plan.	Noted – the proposal will be supported by an Integrated Water Management Plan.



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increase in servicing demand) and evaluates opportunities to reduce water demand (such as recycled water provision). - o details the proposed drainage design (stormwater and wastewater) for the site including any on-site detention facilities, water quality management measures and nominated discharge points, on-site sewage management, and measures to treat, reuse or dispose of water. - o demonstrates compliance with the local council or other drainage or water authority requirements and avoids adverse downstream impacts. ▪ Where drainage infrastructure works are required that would be handed over to the local council, or other drainage or water authority, provide full hydraulic details and detailed plans and specification of proposed works that have been prepared in consultation with, and comply with the relevant standards of, the local council or other drainage or water authority.		
15. Flooding Risk ▪ Identify any flood risk on-site having regard to adopted flood studies, the potential effects of climate change, and any relevant provisions of the <i>NSW Floodplain Development Manual</i>. ▪ Assess the impacts of the development, including any changes to flood risk on-site or off-site, and detail design solutions and operational procedures to mitigate flood risk where required.	Flood Assessment. Risk	Noted – the proposal will be supported by a Flood Risk Assessment.
16. Hazards and Risk ▪ Where there are dangerous goods and hazardous materials associated with the development provide a preliminary risk screening in accordance with Chapter 3 of SEPP (Resilience and Hazards) 2021. ▪ Where required by SEPP (Resilience and Hazards) 2021, provide a Preliminary Hazard Analysis prepared in accordance with Hazardous Industry Planning Advisory Paper No.6 – Guidelines for Hazard Analysis and Multi-Level Risk Assessment. ▪ If the development is adjacent to or on land in a pipeline corridor, report on consultation outcomes with the operator of the pipeline, and prepare a hazard analysis.	Preliminary Hazard Analysis. If required: ▪ Hazard Analysis (Pipeline)	Noted – the proposal will be supported by a preliminary risk screening assessment, and if required a Preliminary Hazard Analysis.



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17. Contamination and Remediation In accordance with Chapter 4 of SEPP (Resilience and Hazards) 2021, assess and quantify any soil and groundwater contamination and demonstrate that the site is suitable (or will be suitable, after remediation) for the development.	Preliminary Site Investigation. If required: - Detailed Site Investigation. - Remedial Action Plan. - Preliminary Long-term Environmental Management Plan.	Noted – the proposal will be supported by a Preliminary Site Investigation (as a minimum).
18. Waste Management - Identify, quantify and classify the likely waste streams to be generated during construction and operation. - Provide the measures to be implemented to manage, reuse, recycle and safely dispose of this waste. - Identify appropriate servicing arrangements for the site. - If buildings are proposed to be demolished or altered, provide a hazardous materials survey.	Waste Management Plan. Hazardous Material Survey.	Noted – the proposal will be supported by a Waste Management Plan and Hazardous Material Survey.
19. Aboriginal Cultural Heritage Provide an Aboriginal Cultural Heritage Assessment Report prepared in accordance with relevant guidelines, identifying, describing and assessing any impacts on any Aboriginal cultural heritage values on the land.	Aboriginal Cultural Heritage Assessment Report.	Noted – the proposal will be supported by an Aboriginal Cultural Heritage Assessment Report.
20. Environmental Heritage Where there is potential for direct or indirect impacts on the heritage significance of items of environmental heritage, provide a Statement of Heritage Impact and Archaeological Assessment (if potential impacts to archaeological resources are identified), prepared in accordance with the relevant guidelines, which assesses any impacts and outlines measures to ensure they are minimised and mitigated.	Statement of Heritage Impact. Archaeological Assessment.	Noted – the proposal will be supported by a Statement of Heritage Impact.
21. Social Impact Provide a Social Impact Assessment prepared in accordance with the <i>Social Impact Assessment Guidelines for State Significant Projects</i>.	Social Impact Assessment.	Noted – the proposal will be supported by a Social Impact Assessment.
22. Infrastructure Requirements and Utilities - In consultation with relevant service providers: - assess the impacts of the development on existing utility	Infrastructure Delivery, Management and Staging Plan.	Noted – the proposal will be supported by an Infrastructure Delivery, Management and Staging Plan.



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infrastructure and service provider assets surrounding the site. - o identify any infrastructure upgrades required on-site and off-site to facilitate the development and any arrangements to ensure that the upgrades will be implemented on time and be maintained. - o provide an infrastructure delivery and staging plan, including a description of how infrastructure requirements would be co-ordinated, funded and delivered to facilitate the development.		
23. Bush Fire Risk ▪ If the development is on bush fire prone land, provide a bush fire assessment that details proposed bush fire protection measures and demonstrates compliance with Planning for Bush Fire Protection.	Bush Fire Assessment.	Not applicable – the subject site is not bush fire prone land.
24. Construction, Operation and Staging ▪ If staging is proposed, provide details of how construction and operation would be managed and any impacts mitigated.	Address in EIS.	Noted – the proposal will address the requirement of this item.
25. Contributions and Public Benefit ▪ Address the requirements of any relevant contribution plan(s), planning agreement or EPI requiring a monetary contribution, dedication of land and/or works-in-kind and include details of any proposal for further material public benefit. ▪ Where the development proposes alternative public benefits or a departure from an existing contributions framework, the local council, the Department and relevant State agencies are to be consulted prior to lodgement and details, including how comments have been addressed, are to be provided.	Address in EIS.	Noted – the proposal will address the requirement of this item.
26. Engagement ▪ Detail engagement undertaken and demonstrate how it was consistent with the <i>Undertaking Engagement Guidelines for State Significant Projects</i>. Detail how issues raised and feedback provided have been considered and responded to in the project. In particular, applicants must consult with: - o the relevant Department assessment team. - o any relevant local councils. - o any relevant agencies. - o the community.	Engagement report.	Noted – the proposal will be supported by an Engagement Report, in accordance with the <i>Undertaking Engagement Guidelines for State Significant Projects</i> .



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o if the development would have required an approval or authorisation under another Act but for the application of s 4.41 of the EP&A Act or requires an approval or authorisation under another Act to be applied consistently by s 4.42 of the EP&A Act, the agency relevant to that approval or authorisation.		
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The proposal is considered to meet the eligibility criteria for industry-specific SEARs. As such, it is requested that NSW DPE issue formal SEARs for the preparation of an EIS for this proposal as SSD. Should you require any further information to do so, please do not hesitate to contact the writer on 0413 555 638 or via email at acowan@willowtp.com.au.

Your sincerely,



Andrew Cowan
Director
Willowtree Planning Pty Ltd

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Appendix 1 Concept Plans, prepared by Greenbox Architecture

